

UHN-PO-HR06 Organisational Change and Transformation Policy

Policy/Guideline Title:	Organisational Change and Transformation Policy		
Executive Summary:	This Policy detail the Organisational Change and Transformation process for the University Hospitals of Northamptonshire (UHoN) Group. The purpose of this document is to establish a framework of principles and procedures for dealing with changes affecting staff.		
Supersedes:	KGH Organisational Change/Redundancy Policy B.13 NGH Organisational Change Policy (NGH-PO-088)		
Description of Amendment(s):	Full review and harmonisation of the policies		
This policy will impact on:			
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Issued By:	Andrew Stewart, Acting Deputy Chief People Officer	Expiry Date:	28 April 2026
Author:	Hayley Payne, HR Business Partner	Impact Assessment Date:	16 September 2022
APPROVAL RECORD			
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Endorsed by Head of Function:	Paula Kirkpatrick, Chief People Officer	08 November 2022	
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UHN-PO-HR06 Organisational Change and Transformation Policy and reference number, Version 1.1, November 2025

Staff are reminded not to rely on a printed copy of the Policy – Policy printed on November 2023

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1. Introduction

The University Hospitals of Northamptonshire (UHoN) are dedicated to excellence in patient care and staff experience, and to becoming a leader in clinical excellence, inclusivity and collaborative healthcare.

As part of this dedication, the Trust may be required to undertake programmes of change and transformation to achieve new and innovative ways of working that provide high quality and efficient services. You and your colleagues are central to the achievement and success of organisational change.

The Trust acknowledges that change can cause concern and uncertainty and it is therefore important to recognise the impact change may have on you. The Trust have in place policies and practices to address the impact of change and is committed to supporting you through any change programmes.

The statutory framework in managing change is complex and this policy is designed to help the Trust to achieve transition and make the change as smoothly as possible. This policy outlines the processes, responsibilities and timescales involved to give clarity and reassurance that where change is needed, it is being dealt with effectively and fairly.

Information about pay protection as a result of organisational change can be found in the UHoN's Pay Protection Policy.

2. Purpose

- UHoN will strive to manage organisational change in accordance with best practice principles and processes and in compliance with employment legislation, including the Equality Act (2010).
- The processes involved in managing change are designed to be fair and transparent, while ensuring security of employment where possible.
- If you or your colleagues are affected by a proposed change, the Trust will ensure you and our Trade Union colleagues have sufficient information to engage and make meaningful contributions to the consultation process.
- UHoN are committed to retaining the skills, knowledge and experience of you and your colleagues and where practicable, compulsory redundancy will be avoided and alternative solutions found.
- UHoN are committed to ensuring that appropriate health and wellbeing support is offered to you throughout any organisational change process.

3. Scope

This policy is applicable to all employees employed under a contract of employment, who are affected by, or involved in, any organisational change process. This policy does not include Bank Workers.

4. Change Process overview

The policy covers the following stages:

- Workforce Planning
- Minor Changes
- Significant Changes – Mutual Agreement / Collective Bargaining
- HR Processes
- Appeals
- TUPE – Transfer of Undertakings (Protection of Employment)

If significant changes or a TUPE is required, you have the right to be accompanied/represented by a trade union representative or work colleague, not acting in a legal capacity.

4.1 Workforce Planning

The need for a change to staffing may be identified through either the regular Trust workforce planning process or in response to a specific situation.

Before undertaking any change process, managers must have a clear rationale for the change, where appropriate, underpinned by data and analysis of information.

In either case, managers should:

- identify the staff changes required for the service change. This will require clarification of any new roles, job descriptions and person specifications*, departmental structures and reporting lines.
- analyse current staffing levels and complete an audit of the existing workforce should identify and shortfall or surplus in respect of staffing.

Any proposed changes must also have approval from the relevant Director and member of the People Partnering Team prior to consultation processes commencing.

* If, as part of a proposed significant change, there is a requirement for job descriptions and person specifications to be reviewed and redrafted, or new job descriptions / person specifications are developed, these must be submitted for job evaluation allowing sufficient time for them to be evaluated in line with the Job Evaluation Policy.

4.2 Minor Changes

There may be occasions when Managers need to implement relatively minor changes. Reasonable minor changes and adjustment to duties and working practices may be implemented without undertaking the formal procedures within this

policy, where your terms and conditions of employment are not affected. However, a fair and reasonable process will be followed. Possible examples of this may include:

- a change to your line manager / reporting line
- a change to the Division / Department in which your area of work sits
- relocation within the same site
- a change to working practice or process

4.3 Significant Changes

Where a significant organisational change programme is proposed, which affects changes to services or ways of working that could lead to workforce reorganisation, open and effective communication is key and a formal consultation process will be undertaken.

4.4 Consultations across the UHoN Group

As the UHoN, there may be occasions where it is necessary to conduct group wide consultation processes across both Kettering General Hospital and Northampton General Hospital Trusts, for example, the development of groupwide services. Where it is deemed these consultations are appropriate, the same principles and mechanisms will apply as for a single Trust process, however individuals from both Trusts will be involved in the processes. Should this approach be necessary, you will be informed of all the stages and potential outcomes as part of the process.

4.5 Travel Time

If, as part of a proposed change programme, there is a requirement for your role to have a change of base or travel between KGH and NGH sites is required during your working day, discussions relating to flexibility of working hours will take place at individual consultation meetings. In such circumstances, you may be entitled to reimbursement of your travel costs in accordance with UHoN's Pay Protection Policy. You are reminded that you have the right to request flexible working arrangements, if you would like to make an application for a more formal arrangement to your working pattern.

4.6 Mutual Agreement

Where possible the first option to be explored should be to reach mutual agreement with you through fair and reasonable informal discussions of a consultative manner. The informal process can help reduce the length of time to implement the change and also can minimise the impact on you. However, if agreement is not reached with you / other colleagues affected a formal process will need to be commenced.

This option cannot be used if there is a potential for redundancies as part of the organisational change.

4.7 Collective Bargaining

Collective bargaining with the Trust's recognised trade unions/professional organisations is the preferred method to be used when a formal process is required.

The Trust will seek to work with its Trade Union colleagues in order to achieve collective agreements, whereby the Trade Unions agree an approach with the Trust on your behalf. If the Trade Unions feel they do not have the necessary mandate,

from their membership to do this or the affected Trade Unions do not feel able to collectively bargain with the Trust then, the Trust will consult with you directly.

4.8 Consultation

Should it be necessary to undertake a formal consultation, the Trust will commit to consulting with the appropriate recognised trade unions or professional bodies and with you / others affected and/or staff groups concerned.

The responsible manager should:

- undertake consultation and discussions with you and others affected as well as staff representatives at the earliest opportunity and throughout the process, the extent of which will depend upon the timing and availability of information. The consultation period is usually 30 days, however when there is no major change (i.e. change not involving potential redundancies), this timescale may be reduced by agreement with the affected staff and their union representatives. Where statutory timescales apply, consultation will continue for the timescales necessary to meet these.
- contact the People Partnering team for advice regarding the process, timescales, consultation requirements and any other related issues.

In undertaking the consultation managers should ensure:

- meaningful consultation with you and others affected is held as early as possible, while proposals are still formative
- information is given regarding the rationale for the proposed change, indicative timescales and possible options
- you and the other colleagues affected by the proposed change can contribute to the thinking around any options and suggest alternatives
- you and your colleagues are assured that, following due process, appointments to posts in any new structures will be completed as speedily as practicable, which will have due regard to issues of fairness and equality.

Managers involved in the organisational change process should be mindful that this can be a difficult and uncertain time for you. They should seek to ensure a supportive climate that promotes positive outcomes and minimises unnecessary concern.

While group meetings may be appropriate to discuss change plans and proposals, you and other colleagues directly affected by change are entitled to a one-to-one meeting to discuss your personal circumstances, any comments or alternative suggestions / proposals. Depending on the nature of the proposed change, any preferences for roles you may have and possible alternative options may also be discussed.

In the event a proposed organisational change process could result in compulsory redundancies, the Trust may consider offering the opportunity of voluntary redundancy or early retirement on the grounds of redundancy. In this circumstance, expressions of interest will be asked for, however they will not commit either party to that action.

4.9 Acting Up, Secondments and Bank Workers

If you are in an 'acting up' role or are seconded into or out of a service at the time of a consultation process, your substantive post is classed as your post for the purposes of any change process, irrespective of the length of time in the 'acting role' or seconded post.

Bank workers will not be given priority status and will not have eligibility for any consultation process. Bank workers will be eligible to apply for posts that proceed to open recruitment, internally, however priority consideration will be given to employees, including fixed-term employees.

5. HR processes

Where changes to the current workforce are required, the following HR processes will be used:

5.1 Automatic slot-in

Where the responsibilities of a post in the new structure amount to at least 60 per cent of your existing substantive duties and there is no change in job banding, you have the right to be automatically slotted into that post if the number of staff who qualify under these criteria is not greater than the number of posts available. Where the new post is a higher band than your substantive post, consideration should be given to a skills review, and agree a selection process to ensure that a fair process has been applied.

5.2 Competitive slot-in

If the number of posts in the new structure is less than the number of staff who meet the 60 per cent slotting-in criteria, an agreed selection process will apply.

If you are not appointed into a post in the new structure, you will be offered post-interview feedback and coaching where appropriate.

Please note that if you are on maternity, adoption or shared parental leave and you meet the slotting-in criteria you will be given priority and offered posts where there is more than one potential candidate.

5.3 'At risk' of redundancy

If you have been unsuccessful in obtaining a post in the new structure or where there is no post in the new structure where you fulfil at least 60 per cent of the duties and no significant change in job banding, you will move into an 'at risk' of redundancy position.

If there are posts remaining in the new structure, these posts will be restricted to you and any colleagues displaced and in scope of the management of change. You will be given prior consideration for ringfencing for these remaining vacancies in the structure where you meet the essential criteria for the post.

5.3.1 Redeployment

The Trust will always actively seek to offer alternative employment opportunities to you or any colleagues who are 'at risk' wherever possible, although this will be confined to known vacancies.

You will be placed on the redeployment register of your employing Trust and can be considered for suitable vacant posts within your employing Trust or suitable vacant posts within 'group model' structures where applicable. You will be placed on the redeployment register for a period of 12 weeks.

Suitable vacant posts can also be considered within the non-employing Trust within the Group. However, 'at risk' staff at the employing Trust will have first priority consideration ahead of staff 'at risk' in the non-employing Trust within the Group. To ensure an equitable and consistent approach, advice must always be sought from the People Partnering team during this process.

Suitable alternative employment will be sought for you if you are on the 'at risk' register. A "suitable alternative" role is work of a broadly comparable nature taking into account nature of work, status, pay (taking into account pay protection provisions), working hours, location, capability, band. As part of the redeployment process you will be offered the opportunity to undertake training.

The People team, having undertaken a preliminary matching process, will notify you and other colleagues "at risk" of potential suitable alternative posts. Either option one or option two (see below) will then be followed to determine the successful candidate for the post, depending on the circumstances.

Option one

If you express an interest in a post, assuming that there is only one candidate, you will discuss with the potential new manager how you can fulfil the majority of the role's requirements, immediately or with training and support, within a reasonable time frame (three months is recommended).

Retraining will be considered to allow you to develop the necessary additional skills to fulfil a new role.

Option two

If you or other colleagues affected are "at risk" and express a written interest in the same post, and you can demonstrate that you can fulfil the majority of the role, a competitive interview process will take place to determine the successful candidate.

Trial periods will also apply under both options.

If a vacancy for a fixed-term appointment arises and is a suitable alternative, it can be used to extend the employment of anyone "at risk" with no loss of redundancy payment.

5.4 Trial period

If you are offered a new a position, this will be made in writing, and you will need to confirm your acceptance prior to the commencement of the trial period.

If you are redeployed because of organisational change, you have a statutory right to a four-week trial period. This trial period may be extended by mutual agreement if further training is required. Following this you may be eligible to a redundancy payment if either party does not consider the post suitable.

During your trial period, your line manager will set performance objectives. You will have regular review meetings to discuss your performance against these objectives.

Should you fail to achieve the performance objectives set during the trial period, a further review of your employment status will follow. A meeting will be convened to discuss the issues, if you have exhausted your 12 weeks on the redeployment register and there are no further suitable vacancies, this may result in termination of employment on grounds of redundancy, depending on the circumstances leading to redeployment.

6. Redundancies

Please note that there is currently a job protection agreement in place between UHoN and staff side that they are committed to making no compulsory redundancies across the group prior to 31st December 2024.

6.1 Avoiding compulsory redundancies

Where absolutely possible, the Trust is committed to avoiding compulsory redundancies.

The following actions may be considered in addition to redeployment, to mitigate the effect of any necessary changes that may result in redundancies:

- vacancy control procedure
- natural turnover
- reducing overtime as far as possible
- limiting usage of temporary staff
- viewing the existing and proposed use of service level agreements and of external consultants
- voluntary reductions in hours worked
- use of flexible working options, to include job share, job transfer and career breaks
- temporary use of supernumerary posts
- any other creative approaches to reduce the risk of compulsory redundancy

If there is the potential, the proposed change may lead to compulsory redundancies, then where suitable, appropriate potential vacancies within the Trust will be placed on hold.

If you are then “at risk” of redundancy steps will be taken to secure an alternative role within the Trust through “preferential consideration” for any suitable vacancy.

The People team will maintain an “at risk” Redeployment Register and ensure those on it get preferential consideration for any suitable vacancy that arises, through use of our internal Redeployment process.

A redundancy position would be considered as a last resort only after all alternative options have been fully considered and explored. If for any reason, it is not possible to redeploy you then you may be entitled to a redundancy payment. Redundancy payments are calculated in line with Section 16 of the Agenda for Change Terms and Conditions of service.

If you unreasonably refuse to accept suitable alternative employment, you may lose any entitlement to redundancy pay.

You will not be issued with a notice of redundancy until the end of the agreed ‘at risk’ consultation period, during which time every attempt will be made to find you alternative employment.

6.2 Voluntary redundancy

In the first instance, requests for expressions of interest in voluntary redundancy may be sought from you or any colleagues affected by the organisational change or a wider staff group, with a view to minimising compulsory redundancies.

If you have indicated an interest you will be provided with financial quotations about your entitlement.

Applications will be considered against objective criteria with a view to maintaining the skills, knowledge and experience essential for the future efficient and effective provision of service delivery.

Applicants will be advised in writing as soon as a decision has been made about their application. There is no right of appeal where an application for voluntary redundancy has been declined.

6.3 Compulsory redundancy

Compulsory redundancies will be a last resort. The method of selection will be consulted upon with trade unions with the aim of achieving agreement. The criteria will be fairly and consistently applied and will reflect ACAS guidance.

If you have obtained, been offered or unreasonably refuse to apply for or accept suitable alternative employment with the Trust or another NHS employer and that employment starts within 4 weeks of your termination date, you will not be eligible for a redundancy payment. Any payments that have been made in respect of the redundancy will be repayable.

7. Request for Review

If there is a disagreement at any stage of the process regarding a matter covered in this policy, wherever possible, efforts should be made to resolve the issue informally through the consultation process.

If the informal mechanism does not address your issue, you have the right to request a review. The request for a review should be against the decision to slot/not to slot into a post or for selection or non-selection for ring-fencing for any remaining posts in a new structure. You have five working days from the date of being notified of the decision, to submit a request for review in writing to the manager as detailed within a letter you receive. To avoid delays in the overall consultation process and planned changes, a fast-track paper-based review will be completed and notified to you within five working days from receipt of your initial response (wherever practicable). The review will be undertaken by an independent manager and a member of the People Partnering Team and the decision will be final.

8. Appeal against Redundancy

If you are put under notice of redundancy you will have the right to appeal and the arrangements for this will be set out in your letter.

9. Transfer of Undertakings (Protection of Employment) - TUPE

Organisational change can sometimes involve the transfer of a service from one employer to another. Such transfers will be handled in accordance with current legislation, within the Transfer of Undertakings (Protection of Employment 2006) – TUPE (8) and guidelines (9). Further information on TUPE can be obtained from the People Partnering team.

10. Pay Protection Arrangements

You may be entitled to pay protection if you are adversely affected by organisational change and have accepted redeployment to a lower paid post within the Trust or suffered a reduction in earnings or contracted hours as a result of redeployment. The pay protection arrangements for you and other colleagues adversely affected by an organisational change programme initiated by the Trust can be found in UHoN's Pay Protection Policy.

11. Definitions

At Risk	Term used to describe staff who are 'at risk' of redundancy because their post may not exist in the future.
Basic Pay/Salary	The monthly sum due in respect of the basic contracted hours worked by an employee within the standard working week to which the individual would be entitled under their contract of employment.
Collective Bargaining (Consultation)	The process of employers and recognised trade unions/professional organisations consulting with each other about matters affecting the trade union's members and other employees in relation to terms and conditions of employment.
Mutual Agreement	A change to terms and conditions of service that has been agreed between a member of staff and an employer.
Organisational Change	Any structural or organisational change that affects individuals' contractual terms and conditions of employment.
Redundancy	When an employee is dismissed because there is a diminished requirement for the work that the employee does or to undertake that particular work. This might be because there is a need to: - Change what is done - Do things in a different way e.g. change of structure or using new machinery - Change location or close a service
Redeployment	The process of endeavouring to find suitable alternative employment for staff that are 'at risk'.

12. Training

There is no training required for this policy.

13. Monitoring Compliance with the Document

Requirement of the policy and compliance to be monitored	Frequency of audit	Responsibility for audit	Results of monitoring reported at:
Number of formal organisation changes taken place	Annual	<i>Head of People Partnering</i>	Union Group Policy Review Forum (GPRF)
Number of formal grievances and Freedom to speak up relating to organisation change	Annual	<i>Head of People Partnering</i>	Union Group Policy Review Forum (GPRF)

14. References

NHS Terms and Conditions of Service Handbook (2022)

Trade Union and Labour Relations (Consolidation) Act 1992 as amended by the Collective Redundancies and Transfer of Undertakings (Protection of Employment) (Amendment) Regulations 1995 and the Employment Rights Act 1996

Employment Rights Act (1996)

Equality Act (2010)

Kettering General Hospital NHS Foundation Trust (2019) Organisational Change/Redundancy Policy

Northampton General Hospital NHS Trust (2020) Organisational Change Policy

University Hospitals of Northamptonshire (2022) Pay Protection Policy

Yeovil District Hospital NHS Foundation Trust (2021) Human Resources Policy Manual

APPENDIX A – RESPONSIBILITIES

1. **The Trust** aims to ensure that this policy is followed where organisational change is required and that managers are aware of their responsibilities.
2. **The Head of People Partnering** will oversee implementation of the policy within the Trust and monitor compliance and effectiveness.
3. **Managers** who are leading a change process within their area of responsibility should follow the principles and processes within this policy and should seek advice from the People Partnering Team in developing a robust plan to undertake the change.
4. **The People Partnering Team** will provide advice and support to managers and staff on the implementation of this policy where change has staffing implications.
5. **Trade unions and managers** will work together to ensure any change process is managed in a fair and consistent manner and in accordance with the principles and processes contained within this policy. They will also offer representation and support to staff as required.
6. **You and your colleagues** should engage positively in the organisational change process, seeking support where you require it.

APPENDIX B – EIA FORM

Equality Impact Assessment (EIA) – Initial Assessment			
1.Division	People Services	2. Department	People Services
3. Person(s) completing this form	Andrew Stewart, Acting Deputy Chief People Officer	4. Contact Information	Andrew.stewart13@nhs.net
5. Others involved		6. Start date of this assessment	16 September 2022
7. What is being assessed (please tick)	New Policy ☒ Existing Policy ☐ New Service / Function ☐ Review Service / Function ☐	8. Implementation/ effective date	End of October 2022
9. Name of Policy	Organisational Change and Transformation Policy		
10. What are the aims / objectives of policy this service?	This Policy detail the Organisational Change and Transformation process for the University Hospitals of Northamptonshire (UHoN) Group. The purpose of this document is to establish a framework of principles and procedures for dealing with changes affecting staff.		
11. Who will be impacted by policy / service (please tick)	Patients ☐ Carers ☐ Public ☐ Staff ☒ Other ☐	11a. If staff are impacted, how many individuals / Which Groups of Staff are likely to be affected?	All
12. Who has been involved in the policy / service development (please tick)	Patients ☐ Carers ☐ Public ☐ Staff ☒ Other ☒	12a. If yes, who have you involved and how have they been involved	Unions, Managers, HR Team, Solicitors
13. What further consultation method(s), if any, are you proposing?	Formal consultation through Trust established Trade Union negotiation forum	14. How are any changes / amendments to the policy / service to be communicated?	Formal consultation period

Equality Impact Assessment – Initial Assessment Outcome			
15. As part of the completing the above have you or a member of the group conducting EIA identified any issues relating to the specific service/policy and gender, race, age, religion, physical disability, hearing impairment / sensory impairment / mental illness / learning disabilities / sexual	No	☒	EIA Complete (please send completed EIA to kgh-tr.diversity@nhs.net)
	Yes	☐	Requires EIA Full Assessment to be completed.

orientation / gender reassignment / marriage & civil partnership / pregnancy & maternity and carer status?			
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Equality Impact Assessment – Full Assessment

Review of any previous EIA actions

What actions did you plan last time? (List them from the previous EIA)	What improved as a result? What outcomes have these actions achieved?	What <u>further</u> actions do you need to take? (add these to the Action plan below)

Review of information, equality analysis and potential actions

Protected characteristics groups from the Equality Act 2010	What do you know? Summary of data about your service-users and/or staff	What do people tell you? Summary of service-user and/or staff feedback	What does this mean? Positive / Neutral / Negative Impact identified from data and feedback (actual and potential)	What can you do? All potential actions to: • advance equality of opportunity, • eliminate discrimination, and • foster good relations
Age				
Disability				
Gender reassignment				
Pregnancy and maternity				
Race/ethnicity Including migrants, refugees and asylum seekers				
Religion or belief				

Protected characteristics groups from the Equality Act 2010	What do you know? Summary of data about your service-users and/or staff	What do people tell you? Summary of service-user and/or staff feedback	What does this mean? Positive / Neutral / Negative Impact identified from data and feedback (actual and potential)	What can you do? All potential actions to: • advance equality of opportunity, • eliminate discrimination, and • foster good relations
Sex/Gender				
Sexual orientation				
Marriage and civil partnership				
Community Cohesion				
Other relevant groups				
Cumulative impact				

Equality Impact Assessment – Full Assessment Outcome

Assessment of overall impacts and any further recommendations	
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Equality Impact Assessment – Detailed list of data/community feedback that informed your EIA

Title (of data, research or engagement)	Date	Gaps in data	Actions to fill these gaps: who else do you need to engage with? (add these to the Action Plan below, with a timeframe)

Equality Impact Assessment – Prioritised Action Plan¹

Impact identified and group(s) affected	Action planned	Expected outcome	Measure of success	Timeframe

Equality Impact Assessment – Initial Assessment Outcome

As part of the completing the above have you or a addressed all issues identified as part of EIA initial assessment	No	☐	Please speak to Diversity and Inclusion Manager
	Yes	☐	EIA Complete (please send completed EIA to kgh-tr.diversity@nhs.net)

¹ These actions must now be transferred to service or business plans and monitored to ensure they achieve the outcomes identified.